

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Josue Mendez Goetz	Team: Team # 1	CCRB Case #: 200610281	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/05/2006 11:45 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/5/2008	Precinct: 113
Date/Time CV Reported Sun, 08/06/2006 6:16 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/07/2006 11:45 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Carleo	12860	934580	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Bentivegna	13790	934482	113 PCT
2. POM Juan Melo	31824	932925	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Carleo	Abuse: PO Michael Carleo stopped and questioned § 87(2)(b) and an individual.	A . Exonerated
B . POM Michael Carleo	Force: PO Michael Carleo pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Michael Carleo	Force: PO Michael Carleo used physical force against § 87(2)(b)	C . Exonerated
D . POM Michael Carleo	Abuse: PO Michael Carleo threatened to hit § 87(2)(b) with an asp.	D . Exonerated
E . POM Michael Carleo	Abuse: PO Michael Carleo frisked § 87(2)(b)	E . Exonerated

Synopsis

On August 5, 2006, at approximately 11:45 AM, § 87(2)(b) was at his house at § 87(2)(b) in Queens when he heard shots being fired. After the shots stopped being fired, he went outside to see what had occurred. After several minutes, several officers arrived in several police vehicles. PO Joseph Bentivegna and PO Michael Carleo of the 113th Precinct arrived in one of these vehicles and they pulled over near § 87(2)(b). As soon as PO Carleo exited the police vehicle, he ordered § 87(2)(b) and an individual to stop (**Allegation A**), pointed his gun at § 87(2)(b) (**Allegation B**), used force to stop him (**Allegation C**), pulled out his asp (**Allegation D**), and frisked him (**Allegation E**). § 87(2)(g) Allegations A, B, C, D, and E are recommended to be **exonerated**.

Summary of Complaint

§ 87(2)(b) s complaint with the CCRB:

On August 7, 2006, § 87(2)(b) called the CCRB and left a message stating that officers walked into § 87(2)(b) s yard and threw him on the ground. He also stated that there were no injuries.

§ 87(2)(b) s Statement to the CCRB:

§ 87(2)(b) was interviewed at the CCRB on August 16, 2006, at 3:50 PM. § 87(2)(b) resides with his mother, § 87(2)(b) at § 87(2)(b) in Queens § 87(2)(b).

On August 5, 2006, § 87(2)(b) was at his house at § 87(2)(b) in Queens, and at approximately 11:30 AM, he heard a shooting taking place outside his house. When the shots stopped being fired, he went to the door in order to see what occurred outside the house. While at the door, he noticed that a male individual was getting up off the ground in the middle of the street. At this point he decided to exit the house and see if the individual was fine. When he approached the individual, he realized that he was the younger brother of one of § 87(2)(b) s friends. § 87(2)(b) did not know his name. The individual explained that he was fine. The individual had been riding a bike when the shooting occurred and he decided to throw himself to the ground. As § 87(2)(b) was talking to this individual, a lady was coming across the street and § 87(2)(b) asked her if she knew what had occurred. § 87(2)(b) did not know the name of this lady. The lady provided some details about the shooting. While § 87(2)(b) was talking to the lady and to the male individual who was riding the bike, another male individual who hangs out with § 87(2)(b) s brother was coming down the block also in order to find out what was going on. They were all talking about the shooting for four or five minutes, when the police arrived.

The first police car was a black unmarked police vehicle and there were three police officers wearing plain clothing. These three officers exited the police vehicle and started to look around. One of the officers approached the lady and asked her questions about the shooting. Minutes later, a second police vehicle arrived. This was a marked police vehicle with two uniformed officers. Right behind the second police vehicle, a third police vehicle arrived, also marked with two uniformed officers. All of these three police vehicles came from the same direction and they all gathered together across the street, two houses from where § 87(2)(b) was standing talking to the other two male individuals. At this point, § 87(2)(b), § 87(2)(b) s mother, was at the door of their house and she called § 87(2)(b) asking him to enter the house. § 87(2)(b) told his brother s friend to walk with him towards § 87(2)(b) s house so they could finish talking before § 87(2)(b) went to talk to his mother inside his house. As § 87(2)(b) and his brother s friend were walking towards § 87(2)(b) s house, a fourth police vehicle, marked with two uniformed officers, came down the street.

The seven officers who had arrived in the first three vehicles were standing about 50 feet away to the right from § 87(2)(b) s house. The fourth police vehicle came from the opposite direction and thus, it

approached § 87(2)(b)'s house before encountering the other seven officers who were already on scene. When § 87(2)(b) and his brother's friend were right in front of § 87(2)(b)'s house, the fourth police vehicle stopped in front of § 87(2)(b)'s house. PO Michael Carleo was in the passenger's side of the police vehicle and he jumped out of the car with his gun drawn and told § 87(2)(b) and the other man to get on the ground. As this happened, § 87(2)(b) was entering the gate that leads into the yard, and his brother's friend was also walking right behind him. Also, at the same time, § 87(2)(b)'s mother, who was standing on the door, was demanding that § 87(2)(b) enter the house. While PO Carleo was telling § 87(2)(b) and the other male to get on the ground, § 87(2)(b) kept walking towards his mother, telling her to go back inside the house. He then turned around to see what was happening with his brother's friend and PO Carleo, and he observed that his brother's friend was on the ground by the gate while PO Carleo was near him. § 87(2)(b) was by this time in the yard about three feet away from his mother and then he turned to his mother and told her, "Do not worry about it, I will tell you what happened in a minute." PO Carleo finished searching the friend in two seconds because that man was only wearing a pair of shorts and a pair of slippers.

§ 87(2)(b) turned to PO Carleo and his brother's friend and this time he saw PO Carleo pointing his gun at him and entering the yard walking towards him yelling, "Get on the ground!" § 87(2)(b) replied, "I live here." § 87(2)(b)'s mother then said, "No, he does not have anything to do with this. He just came outside to see if everybody was ok." Because § 87(2)(b)'s mother started to leave the house, § 87(2)(b) told her, "No mom! No, get back in the house. There is nothing to worry about." PO Carleo did not even hear what § 87(2)(b) and § 87(2)(b)'s mother said and he just kept saying, "Get on the ground! Get on the ground!" § 87(2)(b)'s mother then said, "No! My son lives here!"

There are three steps in between the house's door and the yard and § 87(2)(b) was standing on these steps when he told his mother again to get back in the house. As § 87(2)(b) was facing his mother telling her to go back in the house, PO Carleo reached § 87(2)(b)'s back and grabbed him by his shirt. § 87(2)(b)'s mother became even more excited and § 87(2)(b) tried to calm her down even as PO Carleo was grabbing him by his shirt. PO Carleo continued to point his gun at § 87(2)(b) and he started to pull him down the steps. § 87(2)(b) said, "Hey yo! What are you doing? I told you I live here." PO Carleo continued pulling him down the steps and § 87(2)(b) started to lose his balance. As § 87(2)(b) was regaining his balance, PO Carleo grabbed § 87(2)(b) by his shoulder and threw him on the ground. While PO Carleo was bringing § 87(2)(b) to the ground, PO Carleo grabbed § 87(2)(b) with his left arm while pointing his gun at § 87(2)(b)'s face with his right hand.

Once § 87(2)(b) was on the ground, face down, PO Carleo put his knee on § 87(2)(b)'s back. While PO Carleo was on top of § 87(2)(b), § 87(2)(b) turned his head around, looked at PO Carleo and said, "What is going on in here?" Soon after PO Carleo threw § 87(2)(b) to the ground, § 87(2)(b)'s mother ran towards PO Carleo in order to tell him that § 87(2)(b) was her son and that he lived in that house. PO Carleo's partner was behind PO Carleo and when § 87(2)(b)'s mother tried to interfere, PO Carleo's partner pushed § 87(2)(b)'s mother out of the way, "But just a little bit." When § 87(2)(b) observed that PO Carleo's partner pushed her mother out of the way, he raised his arm and said, "Listen, do not touch my mother!" PO Carleo's partner was "Cool with that and he backed down. Also, my mother did not go forward no more." However, while PO Carleo's partner backed off after § 87(2)(b) warned him not to touch his mother, PO Carleo pulled out his baton (asp) and looked at § 87(2)(b) in a threatening way. § 87(2)(b) said, "What are you going to do with that? Listen, hurry up and search me! Get off of me! And stay right here so I can get your information because I am putting a complaint on you because this is ridiculous." § 87(2)(b) then turned his head away and the officer proceeded to frisk his waist area. PO Carleo got off of § 87(2)(b) and § 87(2)(b) got up. § 87(2)(b) then told the officer not to go anywhere because he needed to get a pen and paper in order to take down his information. § 87(2)(b) entered the house, took a pen and paper, returned outside and wrote PO Carleo's name and shield number.

PO Carleo's partner did not act inappropriately in any way. After PO Carleo got off of § 87(2)(b) he did not say anything. § 87(2)(b)'s mother was furious and she was lecturing the officer. In an

attempt to neutralize the situation, one of the seven officers who had arrived earlier at the scene approached § 87(2)(b) and § 87(2)(b)'s mother. This officer appeared to be the officer in charge and he tried to explain that they had received a report that four black males were shooting. This explanation did not ameliorate § 87(2)(b) and § 87(2)(b)'s mother's feelings about the incident because according to § 87(2)(b) most of the residents in this neighborhood are black. Although the officer in charge was trying to neutralize the situation, neither he nor PO Carleo offered an apology.

§ 87(2)(b) was wearing blue pants, a white shirt, and a pair of sneakers and he identified PO Carleo as a white male, 6'1" tall, 200 pounds, and blond hair with sunglasses. § 87(2)(b) did not know the names of the two male individuals that he was talking to and did not pay any attention to the rest of the officers because they did not even come near him at any time.

Results of Investigation

Attempts to contact witnesses

§ 87(2)(b) provided a phone statement on August 10, 2006. The other male individuals were not contacted because § 87(2)(b) did not provide their contact information. A 250 report of the second individual was obtained late in the investigation because the electronic 250 log did not contain any records of this individual. Only after the investigator obtained the handwritten 250 log, it was determined that PO Juan Melo filed a report for § 87(2)(b), possibly § 87(2)(b)'s friend. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)'s Phone Statement to the CCRB:

§ 87(2)(b) is § 87(2)(b)'s mother and she also resides at § 87(2)(b) in Queens. § 87(2)(b) § 87(2)(b).

On August 5, 2006, at approximately 10:45 AM, § 87(2)(b) was at the house's kitchen when she heard something that sounded like firecrackers. When she heard the firecrackers-like sound, she also noticed that § 87(2)(b) went outside because he wanted to find out what was occurring. § 87(2)(b) followed suit and noticed that an unmarked police vehicle and a marked police patrol pulled in front of the house. When § 87(2)(b) noticed the officer's presence on the street, she screamed at § 87(2)(b) telling him to get back into the house. However, PO Carleo exited from the marked patrol car and ran after § 87(2)(b) who at that moment was standing at his house's yard.

At the same time that PO Carleo was exiting the marked patrol car, he pulled his gun out of the holster and ran towards § 87(2)(b). Right before he reached § 87(2)(b) PO Carleo placed his gun back into the holster. After PO Carleo put his gun away, he threw § 87(2)(b) to the ground and once § 87(2)(b) was on the ground, PO Carleo put his foot on § 87(2)(b)'s back and frisked him. § 87(2)(b) approached PO Carleo and the other officers and told them that § 87(2)(b) was her son. PO Carleo released his foot away from § 87(2)(b)'s back and allowed him to stand up. PO Carleo told § 87(2)(b) that he had a "report of three black males." § 87(2)(b) took the name and badge number from PO Carleo while § 87(2)(b) talked to the officers. § 87(2)(b) stated that PO Carleo left without offering an apology.

Officer's Statement

Police Documents Filed by PO Michael Carleo:

PO Carleo issued a Stop and Frisk report for § 87(2)(b). When PO § 87(2)(b) asked § 87(2)(b) for his name and pedigree information, § 87(2)(b) refused. However, PO Carleo stated that this report was created for § 87(2)(b)'s stop. PO Carleo stated that he used the following physical force: "hands on suspect, suspect on ground, asp." The circumstances leading to the stop: "Fits description. Person attempted to flee into the above address § 87(2)(b) when ordered to get on

the ground. Suspicious bulge/object. Wallet right front pocket.” Additional factors: “Area has high incidence of reported offences. Time of the day/week corresponding to criminal activity. Proximity to scene of suspected offense. Evasive, false or inconsistent responses to officer’s questions. Changing directions at the sight of the officer.” Search Basis: “Person attempted to flee into residence.”

PO Michael Carleo’s Statement to the CCRB:

PO Michael Carleo was interviewed at the CCRB on October 4, 2006. On August 5, 2006, PO Carleo worked from 7:05 AM to 3:40 PM in uniform and was assigned to sector D/E/F/J. PO Carleo was also assigned to work with PO Joseph Bentivegna and they were assigned to RMP # 1948. PO Carleo had the following memo book entries regarding this incident: “At 11:05 AM, I received a radio-run, 10-10, shots fired at § 87(2)(b) and § 87(2)(b). At 11:08 AM, I had one male stopped at § 87(2)(b) for CPW due to confirmed shots fired. Male refused pedigree information. Black male, white T-shirt, black beard, dark sweat pants, approximately 5’9”, 225 pounds, black hair, brown eyes, medium built. When I arrived from northbound on § 87(2)(b) several black males fitting the description were ordered by me with firearm to get to the ground. When refused, male was in walkway of residence, waived his right hand, motioned to disregard a lawful order to get to the ground while attempting to gain entry to § 87(2)(b) while black female was in doorway. I holstered my weapon, I requested for the third time and unknown male turned back to me and I saw bulge in right front pocket. Male refused to get to ground, at which point I grabbed male. He resisted and I used reasonable force to get male to grass. At which point I frisked and searched male and turned male’s wallet, which was bulged. I also had asp out while male was on ground due to black female attempted to stop me from containing male at which point, female stopped from approaching. Job # § 87(2)(b)”

On August 5, 2006, at approximately 11:45 AM, PO Carleo and his partner, PO Bentivegna, responded to a shots fired call. This emergency call come over the radio and it stated that four black males wearing sweatpants, T-shirts and shorts were firing shots at the corner of § 87(2)(b) and § 87(2)(b) in Queens. PO Carleo and PO Bentivegna arrived at the scene in a police vehicle, which was operated by PO Bentivegna. As soon as PO Carleo and PO Bentivegna arrived, PO Carleo observed that approximately six black males were congregated in the middle of the street and that as soon as they saw the police vehicle, they began to scatter. One of the males was § 87(2)(b) who was wearing a white T-shirt, and dark colored sweatpants. PO Carleo did not remember what were the other males were wearing, but he remembered that at least one other individual did not have a T-shirt. PO Carleo exited the police vehicle, drew his gun, approached the males, and told them, “Police, do not move! Get on the ground!” All of these males stopped and went to the ground, except one male, § 87(2)(b) who kept walking towards what appeared to be his house.

PO Carleo believed that § 87(2)(b) was trying to get away by entering his house. PO Carleo understands that once a suspect enters his or her house, an officer can no longer chase the suspect. Thus, PO Carleo ignored the males that went to the ground and only went after § 87(2)(b). By the time PO Carleo decided to go after § 87(2)(b), § 87(2)(b) was about ten feet away from the rest of the other individuals, and ten feet away from his house’s door at § 87(2)(b). § 87(2)(b) went through the house’s front gate, and as § 87(2)(b) was walking across the front lawn, PO Carleo approached him with his gun pointed at him and ordered him to get on the ground. § 87(2)(b) turned around, made eye contact with PO Carleo, said that he lived in that house, and then refused to stop by moving his arm with an over hand waive motion with his palm, as if he was disregarding PO Carleo’s commands. PO Carleo noticed a bulge in § 87(2)(b)’s right front pant’s pocket. Immediately, PO Carleo holstered his weapon, approached § 87(2)(b) and grabbed him. PO Carleo then told § 87(2)(b) that he could not leave and that he needed to find out what was going on. § 87(2)(b) began to flail his hands, and PO Carleo took him to the ground by flipping him over his right shoulder. Once on the ground, PO Carleo placed § 87(2)(b) face down. § 87(2)(b) continued to state that he lived in that house, but started to comply with PO Carleo’s orders.

At the house’s doorway, there was a black female; who came towards PO Carleo in order to stop him from detaining § 87(2)(b). PO Carleo decided to avoid being attacked by this female and he took out his asp in order to deter the female from going towards him. The female stopped coming towards PO Carleo

as soon as he took out his asp. PO Carleo raised his arm with the asp, but did not swing it. PO Carleo did not know what was his partner doing at this time or at any other point throughout this incident. All PO Carleo knew about his partner was that PO Bentivegna exited the vehicle.

PO Carleo, who at this point had one knee on § 87(2)(b)'s lower back while holding him on the ground, ordered § 87(2)(b) to place his hands on his back, which he did. PO Carleo then patted § 87(2)(b)'s body, and while patting down the right front pants' pocket, he felt a bulge. As a result, PO Carleo reached into this pocket and found a wallet and a set of keys.

PO Carleo did not find any weapons on § 87(2)(b)'s body, and allowed him to stand up. PO Carleo then proceeded to file a 250, even though § 87(2)(b) refused to provide his personal information.

As soon as PO Carleo released § 87(2)(b) PO Carleo realized that the female in the doorway was § 87(2)(b)'s mother and that in fact § 87(2)(b) did live in that house. Both § 87(2)(b) and his mother were very angry. PO Carleo tried to calm them down by telling them that there were confirmed shots fired and that six shell cases were found near the place where the six males were previously congregated. § 87(2)(b) and his mother did not care and they continued to complain about § 87(2)(b)'s forcible stop. § 87(2)(b) and his mother asked PO Carleo for his name and badge number, and PO Carleo gave them to them by just standing there and they wrote them down in a piece of paper.

There were other officers coming from various directions, and there were cops all over the place. PO Carleo did not know whether or not any other officers interacted with the other males. PO Carleo did not file any 250's for any of these males, and he did not know if other officers did. After PO Carleo finished with § 87(2)(b) PO Carleo did not see the other individuals and he did not know where they went. PO Carleo left the scene five minutes later.

Police Documents:

SPRINT

On August 5, 2006, four different people called 911 to report the same shooting incident at § 87(2)(b) and § 87(2)(b) in Queens. At 11:04 AM, the first caller stated that four black males wearing sweatpants, T-shirts and shorts were shooting. The second caller, also at 11:04 AM, stated that a group of black males were arguing and shooting. At 11:05 AM, a third caller stated that she heard 10 shots fired and that she heard someone saying, "§ 87(2)(b) did it." At 11:07 AM, a third caller stated that she heard three shots.

The sergeant on patrol arrived at the scene at 11:06 AM. A unit assigned to sector D (PO Carleo's unit) arrived at 11:07 AM and stopped four males at 11:08 AM. A third unit assigned to sector K arrived at 11:09 AM. Also a unit assigned to sector N and a unit assigned to sector H arrived at the scene, but the Sprint printout did not specify at what time they arrived. In total, there were five units.

Electronic Stop and Frisk Log

This log only included an entry for § 87(2)(b)'s stop. It did not record the second individual's stop.

Handwritten Stop and Frisk Log

This log included both § 87(2)(b)'s stop and the second individual's stop, § 87(2)(b)

Stop and Frisk Report for § 87(2)(b)

PO Juan Melo, assigned to sector N (one of the units that responded to the scene) filed this report and he stated that § 87(2)(b) was stopped because he fit a description and he was making furtive movements. Also, he was at the scene where the shoots were fired. Also, when § 87(2)(b) saw the police, he "changed directions."

Roll Call

According to the tour 2 roll call, PO Carleo and PO Bentivegna worked together and were assigned to sector D/E/F/J with RMP 1948. PO Melo worked with PO Marks and they were assigned to sector N/P with RMP # 2478.

Civilian CCRB and criminal history:

§ 87(2)(b) has no history of filing CCRB complaints and has no previous arrest convictions.

Officer CCRB History:

PO Michael Carleo is a two-year-veteran of the NYPD with no substantiated CCRB allegations.

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) obtained PO Carleo's information right after PO Carleo finished frisking him. § 87(2)(b) provided this information to the CCRB.

Undisputed facts

A shooting occurred in front of § 87(2)(b)'s house and § 87(2)(b) went outside after the shooting. PO Carleo received confirmed information about the shooting and that the shooters were a group of black males wearing sweatpants and T-shirts at the intersection of § 87(2)(b) and § 87(2)(b). § 87(2)(b) was wearing sweatpants, a T-shirt and was with a group of males standing at this intersection two minutes after the shooting occurred. When PO Carleo approached the group of males, § 87(2)(b) walked away towards his house. PO Carleo exited the police vehicle, drew his gun and ordered § 87(2)(b) and an individual to stop. § 87(2)(b) ignored PO Carleo's orders and continued to walk towards his house telling PO Carleo that he lived there. PO Carleo then pointed his gun at § 87(2)(b) while ordering him to stop. After § 87(2)(b) continued disregarding PO Carleo's orders, PO Carleo used physical force to stop and frisk him. While PO Carleo was frisking § 87(2)(b), § 87(2)(b)'s mother tried to stop PO Carleo and PO Carleo pulled out his asp. After PO Carleo verified that § 87(2)(b) did not have any weapons, he allowed § 87(2)(b) to stand up and leave. PO Carleo filed a 250.

Disputed facts

There are no disputed facts. PO Carleo admitted to have acted in the way explained by § 87(2)(b).

Assessment of Evidence

§ 87(2)(b) § 87(2)(g) admitted to disregarding PO Carleo's orders and attempting to get to his house. PO Carleo § 87(2)(g) admitted all of the allegations raised by § 87(2)(b) § 87(2)(g).

Allegation A: PO Michael Carleo stopped and questioned § 87(2)(b) and an individual.

Allegation B: PO Michael Carleo pointed his gun at § 87(2)(b)

Allegation C: PO Michael Carleo used physical force against § 87(2)(b)

Allegation D: PO Michael Carleo threatened to hit § 87(2)(b) with an asp.

Allegation E: PO Michael Carleo frisked § 87(2)(b)

According to Criminal Law Procedure 140.50(1), a police officer has the right to forcibly stop a person, “When he reasonably suspects that such person is committing, has committed, or is about to commit either (a) a felony or (b) a misdemeanor defined in the penal law.” Barry Kamins referred to the United States Supreme Court to indicate that “to support reasonable suspicion, an officer must indicate specific and articulable facts that reasonably prompted the stop.” (New York Search and Seizure p. 145.) Kamins also provides examples about sources of reasonable suspicion. In so doing, Kamins quotes *People v. Johnson* by stating that “Generally speaking, a 911 call from an identified citizen, describing a person with a gun at a specified location or a person who has just committed a violent crime, will provide the police with reasonable suspicion” (p 157.) Kamins also makes reference to *People v. Burgos* to indicate that “The officer can draw his weapon to effect a stop and can take reasonable self-protective measures to ensure his safety and neutralize the threat of physical harm” (p 147.) Furthermore, Kamins quotes *People v. Nelson* to demonstrate that an officer can use physical force to subdue an individual (p. 145.) Finally, section 140.50(3) states that if the officers “reasonably suspects that he is in danger, he may search such person for a deadly weapon or any instrument capable of causing serious injury.” § 87(2)(g)

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it is recommended that **allegations A, B, C, D, and E**, be **exonerated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: